

# PUBLIC SUBMISSION

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## General Comment

“Keeping America First in AI Through Openness, Innovation, and Unstoppable Enterprise”

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## Attachments

Comment-US-Policy-AI-2025

"Keeping America First in AI Through Openness, Innovation, and Unstoppable Enterprise"

The United States must solidify its global AI leadership by unleashing free enterprise, open collaboration, and American ingenuity—rather than stifling innovation with excessive controls.

Building on our legacy from the transistor to the internet, these recommendations ensure America remains first in AI through decentralized development, open-source contributions, and allied cooperation.

## 1. Promote a Robust, Open AI Ecosystem

### Encourage Open Source & Collaborative Innovation

- Federal Grant Prioritization: Direct sizable R&D grants toward open-source AI initiatives. These projects allow entrepreneurs, small businesses, and academic researchers to rapidly refine and build upon each other's work.
- Safe Harbor & Legal Clarity: Create a clear safe harbor for model developers who share weights, code, and datasets in good faith under open licenses. Liability concerns surrounding open-source contributions must be minimized to spur a healthy ecosystem of innovation.
- Preempt State Legislation: Pass a minimal, clear, actionable AI framework bill that preempts the impossible to comply with patchwork of state legislation that is strangling AI development in America and creating uncertainty for our builders and innovators.

## 2. Safeguard the Right to Learn and Support Fair Use

- Fair Use and Fair Learning Doctrine: Just as we don't pay a pro athlete because we learn to throw a football from watching them on TV, AI should be allowed to train on public data without extortionate fees. Confirm that training on existing media—be it text, images, or videos—remains a protected form of learning, just as it is for human beings.
- Prevent Price-Gouging: If licensing does occur, it must not exceed the normal cost, (if a book costs \$10, it costs \$10 for AI with no new, extortionate licensing fees tacked on).

## 3. Encourage Mutual Access Among Allies

- Reciprocal Training Permissions: Incentivize proprietary model makers in the United States and allied nations to allow training on the outputs of their closed models, facilitating cross-innovation.

## 4. Embrace Foreign Open-Source Contributions

- No Restrictions on Foreign Open Source: Avoid limiting access to openly released models from any source—including Chinese research groups—if the code and weights are freely and legitimately available. American

developers should be able to refine, align, and adapt such models to uphold and embed American values.

## 5. Ensure American Technological Sovereignty in AI

### Strengthen Domestic Semiconductor Manufacturing

- Tax Incentives & Grants: Extend generous tax breaks and direct incentives to companies building semiconductor fabs on American soil. This ensures a stable domestic supply of critical AI hardware, protecting us from overseas disruptions.

- Risk Mitigation: Recognize the geopolitical risks surrounding Taiwan. The United States must have robust alternative sources of chips if a regional conflict disrupts supply chains.

## 7. Encourage Domestic Rare Earth Extraction

- Priority Mining & Resource Exploration: Offer financial credits and streamlined permitting for teams that discover and exploit new U.S. based rare earth mineral deposits, reducing dependence on overseas suppliers—especially those in adversarial nations.

## 8. Prioritize Common-Sense Intellectual Property Protections

### Empower AI Developers and Human Creators

- Human-in-the-Loop Copyright: Maintain that AI-generated works with meaningful human input are eligible for copyright. This recognizes both the creative contribution of individuals and the new possibilities AI unlocks.

## 9. Maintain Light-Touch Regulation While Upholding American Values

### Reject Overreaching AI 'Alignment' Mandates

- Protect Innovation Freedoms: While businesses and research groups naturally evolve best practices for "responsible AI," the federal government must not shackle innovators with sweeping requirements or top-down alignment frameworks that hamper freedom of thought or expression.

- Promote Transparency Through Choice: Rather than forcing uniform compliance, incentivize companies to publish easy-to-understand documentation on model function and limitations. This fosters user trust without crushing creativity.

## 10. Champion the American Approach to AI

- Decentralized, Not Centralized: Encourage solutions to emergent AI risks and challenges through market-driven best practices, academic research, and voluntary industry standards.

- Voluntary Consortia: Government, industry, and academic stakeholders can collaborate in voluntary consortia to create shared norms—

especially around security and reliability—without mandating heavy-handed oversight.

Keep America First with Freedom and Openness

With open collaboration, fair use, and minimal regulatory burdens, the AI Action Plan ensures America stays first in AI now and in the future.